



CHAPTER ccxxii.

An Act to make further and better provision for the health good government and improvement of the borough of Bridlington and for other purposes.

A.D. 1904.

[15th August 1904.]

WHEREAS the borough of Bridlington in the East Riding of the county of York (herein-after called "the borough") is a municipal borough under the government of the mayor aldermen and burgesses thereof (herein-after referred to as "the Corporation"):

And whereas in pursuance of a resolution passed at a meeting of the vestry of the parish of Bridlington on the twenty-sixth day of September one thousand eight hundred and seventy-three Her late Majesty's Secretary of State did on the ninth day of October one thousand eight hundred and seventy-three signify his approval under and by virtue of the powers contained in the Act 20 and 21 Victoria cap. 81 section 9 and 34 and 35 Victoria cap. 33 section 1 of the appointment of a burial board for the district in such parish consisting of the townships of Bridlington Buckton Easton Hilderthorpe Speeton Wilsthorpe and such part of Sewerby-cum-Marton as was then in the ecclesiastical district of Christ Church Bridlington Quay and a burial board was duly formed accordingly:

And whereas the said burial board borrowed money and provided a cemetery at Bridlington which is known as the Bridlington Cemetery:

And whereas by virtue of the Local Government Act 1894 section 53 (subsections 2 and 3) the powers and duties of the

A.D. 1904. — said burial board or burial authority together with its property debts and liabilities were thereby transferred to and were thenceforth to be exercised by and credited and charged to a joint committee appointed by the Bridlington Urban District Council and the parish councils or parish meetings of the rural parishes wholly or partly comprised within the area of the said burial authority :

And whereas the powers duties obligations and privileges exercised by and the property debts and liabilities of the said burial authority so far as they were exercised and held by such authority as representative of or vested in the urban district council of Bridlington have passed to and are now vested in and exercisable by the Corporation acting by the council as the urban district council of the borough :

And whereas by an indenture dated the sixth day of May one thousand nine hundred and made between William Milner Edmund Mainprize John Nightingale George Brambles Thomas Harland Francis Creaser and Joseph James Beauvais being the lords feoffees of the manor of Bridlington of the first part John William Postill Robert Taylor John Christopher Archer Robert Medforth Charles Gray George Moody Henry Bradley Edward James Smith and John William Moore being the assistant feoffees of the said manor of the second part and the mayor aldermen and burgesses of the borough of Bridlington of the third part All the fairs and statute hirings of or appertaining to the manor of Bridlington or otherwise vested in the said lords feoffees and the future tolls and profits thereof and the full benefit and advantage thereof and all rights powers and privileges of the said lords feoffees and assistant feoffees respectively connected therewith together with the right of the Corporation their successors and assigns and all persons by their permission to use for ever for the purpose of such fairs and hirings the land known as the High Green and all usual approaches thereto on the same and the like number of days in each year thereafter as the same had theretofore been used were for the consideration therein stated granted and conveyed unto and to the use of the Corporation their successors and assigns the Corporation thereby covenanting for themselves their successors and assigns to pay to the said lords feoffees their successors and assigns the sum of one pound a year for the said right of using the said High Green and the usual approaches thereto as aforesaid and otherwise as in the same indenture contained :

And whereas it is expedient that the Corporation be empowered to hold maintain and continue the fairs and statute hirings as aforesaid and that further powers be conferred upon the Corporation in relation to the said fairs: A.D. 1904.

And whereas it is expedient that further powers be conferred upon the Corporation with respect to the improvement of the Princes Parade and adjacent properties belonging to the Corporation:

And whereas it is expedient that the Corporation be empowered to acquire set apart and equip land in or near the borough for an encampment or manœuvring ground and to let such land and also to contribute to the cost of acquiring equipping or maintaining land for those purposes:

And whereas it is expedient that further powers be conferred upon the Corporation with respect to the regulation and control of the sands and seashore and the licensing and control of pleasure boats and boatmen:

And whereas it is expedient that further powers be conferred upon the Corporation with respect to streets buildings sewers and drains and markets the preservation of the health and the local government and improvement of the borough:

And whereas it is expedient that the Corporation be empowered to borrow money as in this Act provided and that such other provisions should be made as in this Act contained:

And whereas estimates have been prepared by the Corporation in relation to the following purposes in respect of which they are by this Act authorised to borrow money which are as follows:—

For the alteration and improvement of the Princes Parade and the erection providing furnishing and equipping thereon of a pavilion or pavilions band-stand winter gardens public hall refreshment rooms shops stalls or other buildings fifteen thousand pounds:

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the Corporation be empowered to borrow money for other purposes of this Act with the sanction of the Local Government Board:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

A.D. 1904.

And whereas an absolute majority of the whole number of the council of the borough at a meeting held on the twelfth day of December one thousand nine hundred and three after ten clear days' notice by public advertisement of the meeting and of the purpose thereof in the *Bridlington and Quay Chronicle* a local newspaper circulating in the borough such notice being in addition to the ordinary notices required for summoning that meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate:

And whereas that resolution was published twice in the said newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the twenty-seventh day of January one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill for this Act in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited for all purposes as the *Bridlington Corporation Act 1904.*

Act divided
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Burial Board.

Part III.—Princes Parade Public Buildings and Lands.

Part IV.—Sands and Seashore.

Part V.—Regulation of Streets.

Part VI.—Advertisements.

Part VII.—Infectious Diseases.

Part VIII.—Sanitary Provisions.

Part IX.—Milk Supply.

A.D. 1904.

Part X.—Ice Creams.

Part XI.—Streets Buildings and Sewers.

Part XII.—Hackney Carriages &c.

Part XIII.—Markets and Fairs.

Part XIV.—Common Lodging-Houses.

Part XV.—Electricity Supply.

Part XVI.—Finance and Rating.

Part XVII.—Miscellaneous Provisions.

3. The following provisions of the Markets and Fairs Act 1847 in so far as the same relate to fairs are incorporated with and form part of this Act and shall apply to the fairs vested in the Corporation (that is to say) sections 16 33 to 41 52 and 54 to 57. Incorporation of certain enactments.

4. In this Act unless the subject or context otherwise requires— Interpretation.

“The mayor” “the town clerk” “the treasurer” “the medical officer” “the surveyor” and “the inspector of nuisances” mean respectively the mayor the town clerk the treasurer the medical officer of health the surveyor and the inspector of nuisances appointed by the council in pursuance of the powers of any public Act and “medical officer” shall include any deputy medical officer of health duly appointed;

“The borough fund” and “borough rate” mean respectively the borough fund and borough rate of the borough;

“The district fund” and “general district rate” mean respectively the district fund and the general district rate of the borough;

“The county council” means the county council of the East Riding of the county of York;

“Joint committee” means the burial joint committee appointed for the township of Bridlington and adjacent townships by virtue of section 53 (subsections 2 and 3) of the Local Government Act 1894;

“Sands and seashore” means the sands and seashore within the borough or any or every part thereof;

“Hackney carriage” and “omnibus” have the meanings assigned to them respectively by the Town Police Clauses Acts 1847 and 1889;

A.D. 1904.

"Public vehicle" includes "hackney carriage" and "omnibus";

"Daily penalty" means a penalty for every day on which any offence is continued after conviction therefor;

"Statutory securities" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

"Dairy" includes any farm farm-house cow-shed milk-store milk-shop or other place from which milk is supplied or in which milk is kept for purposes of sale;

"Dairyman" includes any cowkeeper purveyor of milk or occupier of a dairy;

"Infectious disease" means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough;

"Sanitary conveniences" means urinals water-closets ash-pits lavatories and any similar conveniences;

"The Act of 1889" and "the Act of 1894" mean respectively the Bridlington Local Board Act 1889 and the Bridlington Local Board Act 1894;

"The Municipal Corporations Acts" means the Municipal Corporations Act 1882 and any Act amending the same;

"The Public Health Acts" means the Public Health Act 1875 and any Act amending the same.

Words or expressions to which meanings are assigned by enactments incorporated with this Act have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction.

Application
of Act.

5. This Act shall extend and apply to and within the borough except where otherwise expressed or implied.

PART II.

A.D. 1904.

BURIAL BOARD.

6.—(1) The Corporation shall be the burial authority for the borough and shall have to the exclusion of every other burial authority all the powers of a burial board under the Burial Acts 1852 to 1900 the provisions whereof (except so far as they are varied by this Act and except the provisions thereof relating to the audit of accounts of a burial board) shall apply to every cemetery or burial ground for the time being vested in the Corporation.

Corporation to be burial authority for borough.

(2) All the expenses of the Corporation in the execution of the Burial Acts 1852 to 1900 shall be defrayed out of the borough fund.

7.—(1) On and from the passing of this Act the joint committee shall be dissolved and the Bridlington cemetery and all land buildings and other property and rights of the joint committee at that date shall be transferred to and vested in the Corporation as the burial authority for the borough.

Dissolution of Bridlington Burial Joint Committee and vesting of their property in Corporation.

(2) The byelaws rules regulations orders notices and scales of fees and charges in force at the passing of this Act for or in relation to the Bridlington Cemetery shall continue in force and shall extend and apply to and throughout the borough and all fees charges penalties and forfeitures thereby respectively prescribed and imposed shall be paid recovered and enforced by the Corporation in like manner and in all respects as the same respectively might have been paid recovered and enforced by the joint committee if this Act had not been passed and all moneys so paid or recovered shall be carried to the credit of the borough fund.

8. All the debts and liabilities of the joint committee or of the parishes comprised within the area of their jurisdiction under section 53 of the Local Government Act 1894 unpaid and undischarged at the passing of this Act shall be discharged and satisfied by the Corporation out of the borough fund.

Loans debts and liabilities of joint committee transferred to Corporation.

9. If at the passing of this Act any action or proceeding or any cause of action or proceeding is pending or existing against or in favour of the joint committee the same shall not abate or be discontinued but the same may be continued prosecuted or enforced against or in favour of the Corporation as and when it might have been continued prosecuted and enforced against or in favour of the joint committee as if this Act had not been passed.

Pending actions against joint committee.

A.D. 1904.

Contracts of
joint com-
mittee bind-
ing on Cor-
poration.

10. All agreements contracts and other instruments affecting the joint committee and in force at the passing of this Act shall be as binding and of as full force and effect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the joint committee the Corporation had been a party thereto.

Reserving
rights of
burial in
cemetery.

11. The inhabitants of the several parishes or townships or parts included in the district of the joint committee shall have the right of burial in the Bridlington Cemetery as existing at the passing of this Act at the fees and charges prescribed by the scale of fees and charges in force in respect of the said cemetery and payable by such inhabitants at the passing of this Act.

Audit of
accounts of
joint com-
mittee.

12.—(1) The accounts of the joint committee and of their officers up to the passing of this Act shall be audited in like manner as heretofore and as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit of the accounts of the joint committee to the contrary notwithstanding.

(2) Any officer of the joint committee whose duty it is to make up any accounts or to account for any portion of the receipts or expenditure in any account shall until the audit is completed be deemed for the purpose of such audit to continue in office and be bound to perform the same duties and render the same accounts and be subject to the same liabilities as if this Act had not been passed.

Compensa-
tion to offi-
cers of joint
committee.

13. Any officer of the joint committee who shall be in office at the passing of this Act and who shall suffer any pecuniary loss shall be deemed to be an officer entitled to compensation within the meaning of section 120 of the Local Government Act 1888 and that section shall apply accordingly with the substitution of the Corporation for the county council and the Local Government Board for the Treasury. Such compensation may at the option of the Corporation be by way of annuity or by payment of a sum in gross. Any such compensation shall be paid by the Corporation.

PART III.

PRINCES PARADE PUBLIC BUILDINGS AND LANDS.

Princes
Parade im-
provement.

14.—(1) The Corporation may alter and improve the Princes Parade and may erect provide maintain furnish and equip thereon and on the extension thereof authorised by the Act of 1889 and

on the site of the Victoria Rooms and adjoining properties herein-
after mentioned or on some part or parts thereof a pavilion or
pavilions band-stand winter gardens public hall refreshment rooms
shops stalls and other buildings.

A.D. 1904.

(2) The Corporation may pull down and remove the Victoria Rooms and other properties adjoining the same belonging to them and dispose of the materials thereof and erect provide and maintain on the site thereof or on some part thereof and also on the southern portion of the Princes Parade adjoining the Victoria Rooms a town hall arcade refreshment rooms and shops or any such buildings and may furnish and equip such town hall or they may use any part of the said site for the purpose of extending the Princes Parade southwards or widening and improving the adjacent public streets.

(3) The Corporation may let for any period not exceeding seven years any such building excepting the town hall or any part or parts thereof upon such terms and conditions as they may think fit.

(4) The Corporation may in any pavilion winter gardens public hall arcade or other building erected by them under the provisions of this section arrange for the provision and carrying on of suitable entertainments exhibitions theatrical or other performances and amusements.

(5) The Corporation may charge for admission to any such pavilion winter gardens public hall or other building or any part or parts thereof or in respect of the use of the same and for admission to any entertainments exhibitions performances and amusements provided therein.

15. The Corporation may purchase or take on lease and set apart any land in or near the borough which on the application of the Corporation may be approved by a Secretary of State for a military or volunteer encampment or manœuvring ground and may equip such land for those purposes or any of them and they may maintain or let the same and they may contribute out of the borough fund to the cost of the purchase taking on lease equipping and maintaining of any land for those purposes or any of them by any other authority body or person.

Corporation may acquire land for volunteer camp or manœuvring ground.

16.—(1) The Corporation may erect and maintain upon any lands acquired or to be acquired by them in connection with the widening and improving of Saint John Street and not required for that purpose dwelling-houses for persons employed by them

Corporation may provide dwelling-houses for persons in their employ.

A.D. 1904. — and may let such dwelling-houses on such terms and conditions as they may think fit and they may sell any such dwelling-houses with the sanction of the Local Government Board and subject to such conditions as that Board may prescribe.

(2) The proceeds of the sale of any such houses or lands shall be distinguished as capital in the accounts of the Corporation and shall be applied in discharge of moneys borrowed by the Corporation and any moneys so discharged shall not be reborrowed.

PART IV.

SANDS AND SEASHORE.

Extending provisions of Part IV. of Act of 1894 to other parts of sands and seashore.

17. From and after the commencement of this Act in construing Part IV. of the Act of 1894 and all byelaws made thereunder the expression "the local board" shall mean the Corporation the expression "the district" shall mean the borough and the expression "seashore" shall extend to and include the beach sands and seashore within the borough and sections 16 to 22 of that Act and all byelaws made thereunder shall be read and have effect accordingly.

Power to license pleasure boats.

18.—(1) The Corporation may grant upon such terms and conditions as they may think fit licences for pleasure boats and pleasure vessels to be let for hire or to be used for carrying passengers for hire and to the boatmen or persons assisting in the charge or navigation of such boats and vessels and may charge annual fees for such licences for a boat or vessel a fee not exceeding the sum of five shillings and for a boatman or other person a fee not exceeding the sum of one shilling.

(2) Any such licence may be granted for such period as the Corporation may think fit and may be suspended or revoked or endorsed by the Corporation whenever they shall deem such suspension or revocation or endorsement to be necessary or desirable in the interests of the public. Provided that the existence of the power to suspend revoke or endorse the licence shall be plainly set forth in the licence itself.

(3) No person shall let for hire any pleasure boat or pleasure vessel not so licensed nor shall any person carry or permit to be carried passengers for hire in any pleasure boat or vessel not so licensed.

(4) No person shall act as boatman or assist in the charge or navigation of any such boat or vessel when let for hire or

when carrying passengers for hire who is not licensed by the Corporation as aforesaid. A.D. 1904.

(5) A licence under this section shall not be required for any boat or vessel duly licensed by or under any regulations of the Board of Trade or for any boatman or person assisting in the charge or navigation of such boat or vessel.

(6) No person shall carry or permit to be carried in any pleasure boat or pleasure vessel a greater number of passengers for hire than shall be specified in the licence applying to such boat or vessel and every owner of any such boat or vessel shall before permitting the same to be used for carrying passengers for hire paint or cause to be painted in letters and figures not less than one inch in height and three-quarters of an inch in breadth on a conspicuous part of the said boat or vessel his own name and also the number of persons which it is licensed to carry in the form "Licensed to carry persons."

(7) Every person who shall act in contravention of the provisions of this section shall for each offence be liable on summary conviction to a penalty not exceeding two pounds.

(8) Any person deeming himself aggrieved by the granting withholding suspension revocation or endorsement of any licence under the provisions of this section may appeal to the petty sessional court held for the borough after the expiration of two clear days after such grant withholding suspension revocation or endorsement. Provided that the person so aggrieved shall give twenty-four hours' written notice of such appeal and the ground thereof to the town clerk during office hours and the court shall have power to make such order as they see fit and to award costs to the successful party such costs to be recoverable summarily as a civil debt.

19. The Corporation may make byelaws for securing the safe custody and re-delivery of any property accidentally left in pleasure boats and pleasure vessels to be let for hire or to be used for carrying passengers for hire and fixing the charge to be made in respect thereof. Byelaws for securing safe custody of property left in pleasure boats &c.

20. Any person appointed by the Corporation for that purpose may from time to time examine all pleasure boats and vessels plying for hire within the borough and shall see that the laws and byelaws relating to such boats and vessels are duly observed. If any proprietor boatman letter of boats or other person shall obstruct or hinder any such person appointed as Powers of inspectors of pleasure boats.

A.D. 1904. — aforesaid in the execution of his duties he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Power to
appoint offi-
cers.

21. The Corporation may appoint officers for securing the observance of Part IV. of the Act of 1894 and of this Part of this Act and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

PART V.

REGULATION OF STREETS.

Notice of
procession to
be given.

22.—(1) Any person or persons intending to organise or form a circus procession or procession of wild animals through the streets of the borough shall give written notice thereof and of the route proposed to be taken and of the time at which it will take place to the town clerk by leaving such notice at the town clerk's office twenty-four hours at least (exclusive of Sundays) previously to the time fixed for such procession to pass through the streets.

(2) If any such procession passes through any street of the borough without such notice having been previously given or otherwise than in accordance with such notice the person or persons organising or conducting such procession or any or either of them shall be liable to a penalty not exceeding five pounds each.

Byelaws as
to crying of
newspapers.

23. The Corporation may make byelaws for all or any of the following purposes (that is to say):—

For prohibiting any person or persons during Sundays in any street or public place from crying or calling out for sale any newspaper journal or serial or from advertising by any cry or calling out any newspaper journal or serial or from ringing any bell or using any horn whistle or noisy instrument or creating any noise whatsoever for the purpose of selling any newspaper journal or serial or attracting or attempting to attract the attention of any person or persons by means of any noise whatsoever whether vocal or otherwise for the purposes aforesaid or any of them :

And the provisions of section 23 of the Municipal Corporations Act 1882 shall apply to such byelaws as if they were byelaws

[4 EDW. 7.] *Bridlington Corporation Act, 1904.* [Ch. ccxxii.]

made under that section for the good rule and government of the borough. A.D. 1904.

24. The Corporation may prescribe the streets in which and the manner according to which the leading or driving of animals shall be permitted within the borough. Provided that the route or routes which it shall be lawful for the Corporation so to prescribe shall not be such as would prevent the passage of cattle between any market and any railway station in the borough or any place beyond the boundary of the borough when such animals are merely passing between such market and railway station or other place aforesaid and the Corporation shall be bound to allow at all times a reasonably short and efficient route or routes for the passage of such animals:

As to leading
or driving
animals.

Provided also that any such directions shall only operate between the hours of eight in the morning and nine in the evening and shall not prevent the owner of any animals leading or driving the same to or from his own premises and nothing in this enactment contained shall authorise the Corporation to interfere with the leading or driving of any animals to any duly licensed slaughter-house.

25. Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

Trees or
shrubs over-
hanging
streets and
footpaths.

PART VI.

ADVERTISEMENTS.

26.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

As to hoard-
ings and
other struc-
tures used
for advertis-
ing purposes.

(2) It shall not be lawful after the passing of this Act to erect any such hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such

A.D. 1904. — conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Corporation may determine.

(3) The owner or other person using any hoarding wall or other structure for advertising purposes whether erected before or after the passing of this Act shall at all times keep and maintain the same in proper and safe repair and condition and if any paper affixed for advertising purposes to such hoarding wall or other structure fall off or become detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition given or made under this section may be under the hand of the town clerk or the surveyor.

(6) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Corporation is notified to him under the hand of the town clerk or the surveyor provided he give twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk during office hours and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable summarily as a civil debt.

(7) Section 52 of the Act of 1894 is hereby repealed.

Sky signs.

27.—(1) It shall not be lawful to erect or fix to upon or in connection with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed :

Provided that in any of the following cases a licence of the Corporation under this subsection shall become void namely :—

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor ;

- (ii) If any change be made in the sky sign or any part thereof; A.D. 1904.
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause;
- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof; or
- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed:

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequence as to the recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purposes of this section "sky sign" means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support. The expression "sky sign" shall also include any balloon parachute or other similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include (i) any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement (ii) any sign or any board

A.D. 1904. — frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported (iii) any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place.

PART VII.

INFECTIOUS DISEASES.

Persons engaged in washing or mangling clothes to furnish lists of owners of clothes in certain cases.

28. Whenever it shall be certified to the Corporation by the medical officer that it is desirable with a view to prevent the spread of infectious disease that he should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Corporation may by notice require such person to furnish to the medical officer within a reasonable time to be specified in the notice a full and complete list of the names and addresses of the owners of clothes for whom such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Corporation shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein and every person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Penalty on guardian permitting infected child to attend school.

29. No person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from the medical officer a certificate which shall be granted free of charge upon application that in his opinion such child may attend school without undue risk of communicating such disease to others If any person offend against this enactment he shall be liable to a penalty not exceeding forty shillings.

30. Whenever any scholar who attends any school within the borough shall be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith on becoming aware of the fact send notice thereof to the medical officer and shall furnish to the Corporation at their request a list of the scholars attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Corporation shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five scholars named therein.

A.D. 1904.

Principal of school to furnish list of scholars in certain cases.

31. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the borough or pick fruit intended for consumption within the borough or engage in any trade or business connected with food intended for consumption within the borough or carry on any trade or business in such a manner as to be likely to spread infectious disease within the borough and if he does so he shall be liable to a penalty not exceeding forty shillings.

Infected person not to carry on business &c.

32. No person shall take out of any public or lending library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to any public or lending library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice thereof to the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian or proprietor. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Protection against infection of books in public libraries.

33. The Corporation may if they think fit provide or contract with some person or persons to provide nurses for attendance upon persons suffering from infectious disease within the borough and they may either charge a reasonable sum for the services of any nurse provided by them or at their option they may defray the expenses thereof out of the district fund.

Nurses.

34. If any person shall at the request of the Corporation stop his employment for the purpose of preventing the spread of infectious disease the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

Power to compensate persons suspending employment.

A.D. 1904.

Corporation
may pay ex-
penses of
person in
hospital.

Cleansing
of infected
house and
removal of
persons
therefrom.

35. Where a person not being a pauper is received as a patient into any hospital for infectious diseases the Corporation may if they think fit themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person.

36.—(1) Where it appears to the Corporation upon the certificate of the medical officer that the cleansing and disinfecting of any house or part thereof and of any articles therein likely to retain infection or the destruction of such articles would tend to prevent or check any infectious disease the Corporation may serve notice on the occupier or where the house or part thereof is unoccupied on the owner of such house or part thereof that the same and any such articles therein will be cleansed and disinfected or (as regards the articles) destroyed by the Corporation unless the person so notified informs the Corporation within a time to be specified in the notice from the receipt of the said notice that he will cleanse or disinfect the house or part thereof with any such articles or destroy such articles to the satisfaction of the medical officer as testified by certificate by him within a time fixed in the notice.

(2) If either—

(A) Within the time specified as aforesaid from the receipt of the notice the person on whom the notice is served does not inform the Corporation as aforesaid; or

(B) Having so informed the Corporation he fails to have the house or part thereof and any such articles disinfected or such articles destroyed as aforesaid within the time fixed in the notice; or

(c) The occupier or owner as the case may be without such notice gives his consent;

the house or part thereof and the articles shall be cleansed and disinfected or such articles destroyed by the officers of and at the cost of the Corporation.

(3) For the purpose of carrying into effect this section the Corporation may enter on any premises between nine o'clock in the morning and six o'clock in the evening.

(4) If the Corporation deem it necessary to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or for the purpose of disinfecting such house

or part thereof they may make application to a justice and the justice if satisfied of the necessity of such removal may grant a warrant authorising the Corporation to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit. Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian. The Corporation shall and they are hereby empowered to provide free of charge temporary shelter with any necessary attendants for such persons while prevented from returning to such house or part thereof.

A.D. 1904.

(5) When the Corporation have disinfected any house or part of a house or any article under the provisions of this section they shall compensate the occupier or owner of such house or part of a house or the owner of such article for any damage thereby caused to such house part of a house or article and when the Corporation destroy any article under this section they shall reasonably compensate the owner thereof and the amount of any such compensation shall be recoverable in a summary manner.

For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation or any vessel lying in any harbour or other water or ex adverso of any place within the borough.

(6) The Corporation may for the purpose of providing such temporary shelter as aforesaid—

Themselves build a place of reception;

Contract for the use of any place of reception.

Any expenses incurred by the Corporation under this section shall be paid out of the district fund and general district rate.

37. The Corporation may provide ambulances for use in cases of sickness and accidents happening within the borough and may provide attendants and horses and maintain and keep the same.

Corporation may provide ambulances.

38. The Corporation may make byelaws for regulating the admission to and discharge of patients from any hospital for infectious disease temporarily or otherwise provided by them and the conduct of patients therein and for preventing persons from entering such hospitals or the grounds thereof except with the consent of and subject to such conditions as may be imposed by the Corporation.

Byelaws regulating hospitals.

39. Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough

Notice of provisions of this Part of Act.

A.D. 1904.

and by a notice affixed outside the town hall and by the distribution of handbills among persons affected or likely to be affected so far as such persons can reasonably be ascertained. Copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART VIII.

SANITARY PROVISIONS.

As to
nuisances.

40. For the purposes of the Public Health Act 1875—

- (1) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health ;
- (2) Any gutter drain shoot stack pipe or down spout of a building which by reason of its insufficiency or its defective condition shall cause damp in such building or in an adjoining building ; and
- (3) Any deposit of material in or on any building or land which shall cause damp in such building or in an adjoining building so as to be dangerous or injurious to health ;

shall be deemed to be a nuisance within the meaning of the said Act.

Regulation
pails and
tubs for ash-
pits.

41. The owner of every dwelling-house may be required by the Corporation to provide galvanised iron dust-bins or tubs in lieu of ash-pits and such dust-bins or tubs shall be of such size and construction as may be approved by the Corporation and any owner who fails within fourteen days after notice given him to comply with the requirements of the Corporation shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any dust-bins tubs or ash-pits in use at the passing of this Act so long as the same are of suitable size and in proper order and condition.

Surface
water not to
be discharged
on to surface
of footway
&c.

42. Any owner or occupier of property from whose premises a stack-pipe discharges water on to the surface of a footpath or roadway shall be liable to a penalty not exceeding forty shillings for each day on which surface water is allowed to discharge as aforesaid after receiving not less than one month's notice from the Corporation to remedy the same.

43. The powers of the Corporation under section 39 of the Public Health Act 1875 and section 20 of the Public Health Acts Amendment Act 1890 shall extend to authorise them to provide and maintain in proper and convenient situations sanitary conveniences in or under any street repairable by the inhabitants at large for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary convenience (other than a urinal) and the Corporation may make byelaws for the management of such sanitary conveniences and as to the conduct of persons frequenting the same and may let any such sanitary conveniences for such periods at such rents and subject to such conditions as to the charges to be made for the use thereof and otherwise as they may think proper.

A.D. 1904.

Public conveniences.

PART IX.

MILK SUPPLY.

44. Every dairyman supplying milk within the borough from premises whether within or beyond the borough shall notify to the Corporation or to the medical officer all cases of infectious disease among persons engaged in or in connection with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists. Any such dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings. On receipt of any such notification relating to premises situate beyond the borough the medical officer shall forthwith communicate such notification to the medical officer of health of the district in which such premises are situate.

Dairymen to notify infectious disease existing among their servants &c.

45. If the medical officer shall have reasonable cause to believe that any person in the borough is suffering from infectious disease attributable to milk supplied within the borough he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a complete list of the names and addresses of the persons to whom he has within such six weeks supplied milk within the borough and the Corporation shall pay to him for every such list the sum of sixpence and after the rate of sixpence for every twenty-five names contained therein and every such person failing to comply with such request shall for each such offence be liable to a penalty not

Medical officer may require dairymen to furnish list of sources of their supply of milk and of their customers.

A.D. 1904. — exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Penalty for selling milk of diseased cows.

46. Every person who knowingly sells or suffers to be sold or used for human consumption within the borough the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty on failing to isolate diseased cows.

47. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the borough who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Obligation to notify cases of tuberculosis.

48. Every dairyman who supplies milk within the borough and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

Power to take samples of milk.

49.—(1) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the borough for examination samples of milk produced or sold or intended for sale within the borough.

(2) The like powers in all respects may be exercised outside the borough by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

Power to inspect cows and to take samples of milk.

50.—(1) If milk from a dairy situate within the borough is being sold or suffered to be sold or used within the borough the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the

udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished. A.D. 1904.

(2) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the borough from consumption of the milk supplied from a dairy situate within the borough or from any cow kept therein he shall report thereon to the Corporation and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Corporation may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the borough until the order has been withdrawn by the Corporation.

(3) If the medical officer has reason to believe that milk from any dairy situate outside the borough from which milk is being sold or suffered to be sold or used within the borough is likely to cause tuberculosis in persons residing within the borough the powers conferred by this section may in all respects be exercised in the case of such dairy provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(4) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(5) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Corporation may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the borough on the council of the borough or county district in which it is situate.

A.D. 1904.

(6) The said order shall be forthwith withdrawn on the Corporation or the medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the borough.

(7) If any person after any such order has been made supplies any milk within the borough in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(8) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

Appeal.

51.—(1) The dairyman may appeal against an order of the Corporation made under the last preceding section or the refusal of the Corporation to withdraw any such order either to a petty sessional court having jurisdiction within the borough or at his option if the dairy is situate outside the borough to the Board of Agriculture and Fisheries who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the borough and give notice thereof to the dairyman and the town clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

(2) The Board of Agriculture and Fisheries may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture and Fisheries in the matter of the appeal.

(3) The court or the Board of Agriculture and Fisheries as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture and Fisheries as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation.

Compensation to dairy-men.

52. If an order is made without due cause or if the Corporation unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Corporation full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Corporation to withdraw the order.

[4 EDW. 7.] *Bridlington Corporation Act, 1904.* [Ch. ccxxii.]

The court or the Board of Agriculture and Fisheries may determine and state whether an order the subject of appeal has been made without due cause and whether the Corporation have unreasonably refused to withdraw the order and whether the dairyman has been in default. A.D. 1904.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or the Board of Agriculture and Fisheries or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

53. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Corporation before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise. Procedure.

54. All expenses incurred by the Corporation in carrying into execution the provisions of this Part of this Act shall be chargeable upon the district fund and general district rate and the Corporation may also charge upon the same fund and rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the borough. Provided that no such test shall be applied except with the previous consent of the owner of such cow. As to expenses.

55. This Part of this Act may be carried into execution by a committee of the Corporation formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the Corporation. Execution of this Part of Act by committee.

56. The provisions of section 34 of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Corporation under any such order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all Provisions as to retailers of milk.

A.D. 1904. — vessels used within the borough for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets.

Notice of provisions of Part IX. of this Act.

57. The Corporation shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

PART X.

ICE CREAMS.

For regulating manufacture and sale of ice creams &c.

58.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice creams or other similar commodity who within the borough—

- (A) Causes or permits ice creams or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any cellar room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or
- (B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or
- (c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building any part of which is used for the manufacture of ice cream or any similar commodity suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation may compensate the owners of the ice cream or similar commodity or materials so destroyed.

59. Every dealer in ice creams or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow or stand and if he fails to comply with this enactment he shall be liable to a penalty not exceeding forty shillings.

A.D. 1904.
As to dealers
in ice creams.

60. The Corporation shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

Notice of
provisions of
Part X. of
this Act.

PART XI.

STREETS BUILDINGS AND SEWERS.

61. It shall not be lawful for any person without the consent of the Corporation in writing first obtained which consent shall not be unreasonably withheld to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily as a civil debt.

Deposit of
building
materials or
excavations
in streets not
to be made
without con-
sent of Cor-
poration.

62. If the footway of any street belonging to or under the management of the Corporation be injured by or in consequence of any excavations on lands adjoining thereto the Corporation may repair or replace the footway injured and all damages and expenses of or arising from such injury and repair or replacement shall be paid to the Corporation by the owner of the lands on which such

Recovery of
damages
caused to
footways by
excavations.

A.D. 1904. — excavation has been made or by the person causing or responsible for the injury.

Amendment of section 19 of Public Health Acts Amendment Act 1890.

63. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Corporation may order houses &c. to be drained by a combined operation.

64. If it appear to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners or occupiers in a summary manner before a court of summary jurisdiction Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer :

Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation.

Corporation may require enlarged sewer.

65. If in any new street the Corporation for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation.

Power to require water closets for new buildings.

66. Notwithstanding anything in the Public Health Acts the Corporation may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available by written notice require that such new building shall

be provided with proper and sufficient water-closets according as circumstances may require. A.D. 1904.

Any person failing to comply with any requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

67. If any yard or open space in connection with any dwelling-house shall not be so formed flagged asphalted or paved as to allow of the surface water being carried off to the drains the Corporation may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalt or pave the whole or so much of such yard or open space as will allow of the surface water being carried off to the drains and within twenty-eight days after such notice shall have been so given to complete such several works to the satisfaction of the Corporation and if such owner shall make default in complying with any of such requirements to the satisfaction of the Corporation within the respective times aforesaid the Corporation may if they think fit execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Corporation by such owner and shall be recoverable summarily as a civil debt. Yards to be paved.

68.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by a plan and section of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended. Temporary and movable buildings.

(2) The Corporation shall within one month after the delivery of the plan and section and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Corporation may attach to their approval any condition which they may deem proper with regard to the sanitary arrangement of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

A.D. 1904.

(4) If any such building is commenced erected or set up without such application accompanied by such plan section and specification or after the disapproval of the Corporation or before the expiration of one month without such approval or is in any respect not in conformity with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty not exceeding the like amount and the Corporation may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section:--

(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough in respect to new buildings and any tent not remaining for more than seven days;

(B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be taken down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be taken down or removed and any expense incurred by them in or about the taking down or removal of the structure or erection may be recovered summarily as a civil debt from the owner of the building or from the person erecting or setting up the same at their discretion;

(C) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light; and

(D) Buildings (other than a dwelling-house) erected or set up on the premises of any railway company and used for the purposes of their railway.

69. Nothing contained in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connection with their railway.

A.D. 1904.
Exemption
of certain
buildings
belonging to
railway com-
panies.

PART XII.

HACKNEY CARRIAGES &c.

70.—(1) The provisions of the Town Police Clauses Acts 1847 and 1889 and the byelaws of the Corporation with respect to public vehicles shall be as fully applicable in all respects to hackney carriages and omnibuses within the borough conveying passengers to or from any railway station within the borough as if such railway station were a public stand for hackney carriages or omnibuses and also to such vehicles and the drivers thereof within a distance of seven miles from the General Post Office of the borough if the hiring takes place within the borough:

As to public
vehicles at
railway sta-
tion or with-
in seven
miles of
borough.

Provided as follows:—

- (i) It shall not be obligatory on the drivers of hackney carriages or omnibuses to contract to carry persons for hire beyond the borough;
- (ii) If the hiring takes place within the borough any offence against any of the provisions of the said Acts or against any such byelaw whether such offence shall have been committed within the borough or not may be brought before and determined by a court of summary jurisdiction having jurisdiction within the borough;
- (iii) The provisions of this section shall not apply to any vehicle belonging to or used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or to the drivers or conductors of such vehicles.

(2) Section 61 of the Act of 1894 is hereby repealed.

71. A licence granted to a driver or conductor of a hackney carriage or omnibus in pursuance of the Town Police Clauses Acts 1847 and 1889 or either of those Acts shall specify whether it is granted to a person to act as driver or as conductor and shall also specify the class or classes of carriage in respect of which it is granted and if any person shall act as driver or as conductor of

Licences to
drivers of
hackney car-
riages and
omnibuses to
specify class
of carriage
&c.

A.D. 1904. a hackney carriage or omnibus without a licence to act as driver or as conductor thereof (as the case may be) or shall act as driver or conductor of a carriage belonging to a class different from the class (if any) specified in his licence such person and the proprietor of the hackney carriage or omnibus shall be deemed to have committed an offence under section 47 of the Town Police Clauses Act 1847.

Occasional
licences may
be granted.

72. An occasional licence for a public vehicle may be granted by the Corporation to be in force for such day or days or other period less than one year as may be specified in the licence.

Byelaws for
fixing stands
for public
vehicles.

73. The Corporation may make byelaws for fixing the stands on which public vehicles of different classes and descriptions shall alone stand and for prohibiting a public vehicle of one class or description from using a stand appointed for vehicles of another class or description.

Licences to
porters &c.

74. The Corporation may from time to time grant to any person whom they may think fit a licence to carry on the calling of a luggage-porter light-porter public messenger or commissionaire and may charge a fee of one shilling for any such licence.

The Corporation may from time to time make byelaws for regulating the conduct of any persons so licensed and for fixing the charges to be made by them.

Every such licence may be granted for a year or for any less period according as the Corporation may think fit and may be suspended or revoked or endorsed by the Corporation for a breach of such byelaws or whenever they shall deem such suspension or revocation or endorsement to be necessary or desirable in the interests of the public. Provided that the existence of this power to suspend or revoke or endorse a licence shall be plainly set forth in the licence itself.

Every such licence whensoever issued shall expire on the thirty-first day of March next following the date of its issue and may contain conditions as to the badge which the holder of any such licence shall wear.

If any person while unlicensed represents himself to be licensed or wears any badge for the purpose of representing himself as licensed to carry on any of the callings specified in this section he shall be liable to a penalty not exceeding twenty shillings.

PART XIII.

A.D. 1904.

MARKETS AND FAIRS.

75. The Corporation may maintain hold and continue the fairs and statute hirings within the manor of Bridlington as heretofore at the same place and on the same days in each year as the same have been hitherto held and may levy demand and receive the customary tolls and profits and may hold exercise and enjoy the rights powers and privileges vested in the Corporation in connection with the same fairs and statute hirings and may exercise the other powers conferred on them by this Act in relation thereto.

Corporation may maintain fairs within manor of Bridlington.

76. The Corporation may with respect to the said fairs make byelaws for any of the purposes mentioned in section 42 of the Markets and Fairs Clauses Act 1847 so far as those purposes relate to fairs and printed copies of any byelaws so made shall be conspicuously exhibited in such fairs Provided always that the days on which the fairs are held shall not be altered except in pursuance of the Fairs Acts 1871 and 1873.

Byelaws with respect to fairs.

77. The Corporation may let any of the stands stalls sheds places or other conveniences in any markets or market places under their regulation or control to any person for any term not exceeding three years at such stallages or rents and on such terms and conditions as are mutually agreed on.

Leases of stalls &c.

78. The stallage standage or rent payable according to the list of standages from time to time fixed by the Corporation shall be due and payable in advance and shall be due and payable not only by the original taker or occupier thereof for a part or portion of the day in case he shall not occupy the same the whole day but also by any subsequent taker or occupier of the same for the residue or any other part or portion of the same day and all such stallages standages and rents may be recovered by the Corporation summarily as a civil debt in addition to any other remedy.

Stallages to be paid in advance and to be payable by successive occupiers.

79.—(1) No person shall sell or cause to be sold by auction in the markets any goods marketable commodities or articles except such as are of a perishable nature unless with the consent of the Corporation.

Certain goods not to be sold by auction without consent of Corporation.

(2) Any person committing an offence against this section shall be liable to a penalty not exceeding five pounds.

A.D. 1901.

Power to
remove un-
authorised
stalls &c.

80. Any officer of the Corporation or any constable may remove from the markets or fair ground any stall stand show or other article or thing for the privilege of placing which in the markets or fair ground the proprietor or person in charge thereof refuses or omits to pay the stallage standage or rent payable according to the list of standages from time to time fixed by the Corporation.

PART XIV.

COMMON LODGING-HOUSES.

Regulations
as to com-
mon lodging-
house keep-
ers.

81. The keeper of every common lodging-house within the borough shall reside constantly and shall remain between the hours of nine o'clock in the afternoon and six o'clock in the forenoon in such house and shall manage control and exercise proper supervision over the same and the inmates thereof except at such times as some other person appointed by him for that purpose and whose name is registered at the office of the Corporation shall with the approval of the Corporation in writing under the hand of their officer appointed for that purpose (which approval and registration shall be revocable by the Corporation) reside and remain in such house or manage control and exercise proper supervision over the same and the inmates thereof. If any keeper of a common lodging-house offends against this enactment he shall be liable for every such offence to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Sanitary
conveniences
to be pro-
vided for
inmates of
common
lodging-
houses.

82. Every common lodging-house whether registered before or after the passing of this Act shall to the satisfaction of the Corporation be provided with sufficient sanitary conveniences having regard to the number of lodgers who may be received in such common lodging-house and all water-closets and urinals shall be provided with a proper water supply laid on for flushing purposes. Any keeper of a common lodging-house who shall make default for twenty-eight days in complying with a notice from the Corporation requiring him to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. The expression "sanitary conveniences" in this section includes urinals water-closets and any similar convenience.

Registration
of common
lodging-
houses and
keepers.

83.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house or of the keeper of a common lodging-house shall operate for one year only and

application for the renewal of such registration shall be made to the Corporation on or previous to the thirty-first day of March in every year. A.D. 1904.
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(2)—(A) The Corporation may notwithstanding the provisions of section 78 of the Public Health Act 1875 refuse to register or to re-register any person as a common lodging-house keeper unless they are satisfied of his character and fitness for the position :

(B) Any person aggrieved by such refusal may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as they may think fit and to award costs.

(3) Every person who without being registered in accordance with the Public Health Act 1875 and this Act shall keep a common lodging-house within the borough and every person who after the thirty-first day of March one thousand nine hundred and five shall keep a common lodging-house without the registration of such person being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

84. Notice of the provisions of this Part of this Act shall be served upon the keeper of every common lodging-house either personally or by leaving the same at the common lodging-house. Notice to
common
lodging-
house keep-
ers.

PART XV.

ELECTRICITY SUPPLY.

85.—(1) The Corporation may within the borough provide sell let for hire and fix set up alter repair and remove but shall not manufacture lamps meters electric lines fittings apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines fittings apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Corporation as the Corporation may think fit or as

Power to
supply
electric fit-
tings.

A.D. 1904. — may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

(2) Any expenses incurred by the Corporation in carrying into effect the provisions of this section shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections seven and eight of that Act shall extend and apply accordingly to such expenses and any money received by the Corporation under this section shall be applied in manner provided by section seven of the Electric Lighting (Clauses) Act 1899.

(3) No electric motor engine lamp meter electric line or other electrical fitting and apparatus for the use of electricity let for hire by the Corporation shall be subject to distress or to the landlord's remedy for rent nor to be taken in execution under any process of law or equity or any proceeding in bankruptcy against the person or persons in whose possession the same may be. Provided that such motor engine lamp meter line fitting or apparatus is marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

Altering date for filling up annual accounts for electric lighting.

86. Notwithstanding anything in section nine of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Corporation for the time being shall after the passing of this Act be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding and section nine of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the said undertaking as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

Discount on electric lighting and power accounts.

87. The Corporation may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Corporation for the supply of electric light or electrical power or energy from every person who pays the same within such time after demand thereof as the Corporation think fit to prescribe in that behalf and notice to this effect shall be contained in or endorsed upon every demand note in respect of such charges. Provided that the Corporation shall make the same allowance to all consumers under similar circumstances.

88. The Corporation may refuse to supply electrical energy to any person whose payment for the supply of electrical energy is for the time being in arrear whether such payment be due to the Corporation in respect of a supply to the same or other premises.

A.D. 1904.
Corporation may refuse to supply electrical energy in certain cases.

89. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 or the Bridlington Electric Lighting Order 1900 a person shall not be entitled to demand from the Corporation a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Corporation such minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing charges incurred by the Corporation to meet the possible maximum demand of such person. In case the Corporation and the person demanding such supply of electrical energy shall fail to agree the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the President of the Institution of Electrical Engineers.

As to supply of electricity where consumer has separate supply.

90. If the local authority for any district adjacent to the area which the Corporation are for the time being authorised to supply with electrical energy are or shall be authorised by Act of Parliament or by Provisional Order confirmed by Parliament to supply energy or if any company are so authorised to supply energy within any such district the Corporation and such local authority or company as the case may be may enter into and carry into effect agreements for the supply of electrical energy in bulk by the Corporation to such authority or company but such agreements shall in all respects be subject to the approval of the Board of Trade.

Supply of electrical energy outside the borough.

PART XVI.

FINANCE AND RATING.

91. The Corporation may from time to time appoint and pay one or more persons being members of the Institute of Chartered Accountants in England and Wales or of the Incorporated Society of Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in addition to the auditors appointed under the Municipal Corporations Act 1882.

Paid auditors.

A.D. 1904.

Accounts to
be audited.

92. The accounts of the Corporation under this Act shall be audited in like manner and with the like incidents as the accounts of the Corporation under the Municipal Corporations Act 1882.

Power to
grant gratui-
ties in certain
cases.

93.—(1) The Corporation may if they think fit grant a gratuity of any sum not exceeding one year's pay to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

Power to
borrow

94. The Corporation may from time to time in addition to any moneys now borrowed by them or which they are now authorised to borrow or which they may be authorised to borrow under the provisions of any general Act borrow at interest on the following securities and for the following purposes not exceeding the following sums or such part thereof as may from time to time be borrowed and to be repaid from time to time within the periods (to be calculated unless otherwise provided from the respective dates at which the same or any part thereof shall have been borrowed) set opposite to the same respectively in this section and herein-after referred to respectively as the prescribed period (that is to say):—

For paying the taxed costs charges and expenses preliminary to and of and incidental to the preparing and applying for obtaining and passing of this Act the sum required for that purpose upon the borough fund and borough rate to be repaid within the period of five years from the passing of this Act ;

For purchasing land for and erecting a town hall and for furnishing such town hall such sums not exceeding twenty thousand pounds in the whole and for such periods as may be sanctioned by the Local Government Board upon the borough fund and borough rate ;

For the alteration and improvement of the Princes Parade and the erection providing furnishing and equipping thereon of a pavilion or pavilions band-stand winter gardens public hall refreshment rooms shops stalls or other buildings fifteen

thousand pounds upon the district fund and general district rate to be repaid within the period of thirty years ; A.D. 1904.

For the pulling down and removal of the Victoria Rooms and other properties adjoining the same and erecting providing furnishing and equipping an arcade refreshment-rooms and shops and other buildings and widening and improving the adjacent streets such sums not exceeding thirty thousand pounds in the whole and for such periods as may be sanctioned by the Local Government Board upon the district fund and general district rate ;

For the purchase of land for a military or volunteer encampment or manœuvring ground and equipping the same such sums not exceeding five thousand pounds within such period not exceeding thirty years as the Local Government Board may sanction upon the borough fund and borough rate ;

For the erection of dwelling-houses for persons in the employ of the Corporation such sum not exceeding fifteen thousand pounds upon the borough fund and borough rate and to be repaid within such period not exceeding sixty years as that Board may sanction.

95. The Corporation may with the sanction of the Local Government Board borrow on the security of the borough fund and borough rate or the district fund and general district rate such further sums of money not exceeding five thousand pounds as may be necessary for carrying into execution any of the purposes of this Act and all moneys so borrowed shall be repaid within such periods from the respective times of borrowing the same and subject to such terms of repayment or otherwise as that Board shall prescribe. Power to borrow with sanction of Local Government Board.

96. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act. Mode of raising money.

97. Sections 236 to 238 of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall extend and apply to all mortgages granted by the Corporation under the provisions of this Act. Provisions of Public Health Act 1875 as to mortgages to apply.

A.D. 1904.

Mode of payment off of money borrowed.

98. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Sinking fund.

99.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called “a non-accumulating sinking fund”; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called “an accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation : A.D. 1904.

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided always that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumu-

A.D. 1904. — relating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Proceeds of sale of surplus lands to be treated as capital.

100. The proceeds of the sale of any surplus lands of the Corporation under the powers of this Act and all fines and premiums on leases and other moneys in the nature of capital received under this Act other than borrowed moneys shall be distinguished as capital in the accounts of the Corporation and shall be applied in discharge of moneys borrowed by the Corporation and any moneys so discharged shall not be re-borrowed:

Provided that such proceeds when used to pay off borrowed moneys shall not be applicable to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Protection of lender from inquiry.

101. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporation not to regard trusts.

102. The Corporation shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them under this Act or any previous Act or Order relating to the borough may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register.

Appointment of receiver.

103. The mortgagees of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or

of principal and interest by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole The application for the appointment of a receiver shall be made to the High Court.

A.D. 1904.

104. If the Corporation pay off any moneys borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

Power to re-borrow.

105.—(1) The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of such town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court

Annual return to Local Government Board.

A.D. 1904. and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

Application
of money
borrowed.

106. All money borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Expenses of
execution of
Act.

107. All expenses incurred by the Corporation in the execution of this Act which are not defrayed out of borrowed moneys or otherwise provided for shall be defrayed out of the borough fund and borough rate or the district fund and general district rate as the Corporation may in their discretion having regard to the object of the expenditure think fit.

PART XVII.

MISCELLANEOUS PROVISIONS.

General pro-
visions as to
byelaws.

108. All byelaws from time to time made by the Corporation under the powers of this Act (except byelaws made under the powers contained in section 23 of this Act) shall be made under and according to the provisions with respect to byelaws contained in sections 182 to 185 of the Public Health Act 1875 except so much thereof as relates to byelaws made by a rural sanitary authority Provided always that no byelaws relating to any part of the foreshore shall come into operation without the consent of the Board of Trade.

109. Where in any legal proceedings taken by or on behalf of the Corporation before any court of summary jurisdiction whether under this Act or under any general or local Act passed before or after this Act or under any byelaw for the time being in force within the borough it becomes necessary to prove the appointment or authority of any committee of the Corporation or any officer servant solicitor or agent of the Corporation or to prove any resolution of the Corporation or of any committee of the Corporation a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the mayor or the town clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

A.D. 1904.
Evidence of
appoint-
ments autho-
rity &c.

110. In the case of any notice or other such document under this Act requiring authentication by the Corporation the signature of the mayor or town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by the two hundred and sixty-seventh section of that Act authorised to be served. Provided that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Authentica-
tion and ser-
vice of
notices &c.

111. Where under this Act or any former Act of the Corporation the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

As to breach
of conditions
of consent of
Corporation.

112. Subject to the provisions of this Act the Corporation may from time to time as and when they think fit sell and dispose of any lands acquired by them under the powers contained in this Act and not required for the purposes for which they were acquired and may enter into and carry into effect and confirm any contracts for the purpose. Any such sale may be by public auction or private contract and with or without any special conditions and the Corporation may subject to the like consent fix

Power to sell
lands.

A.D. 1904. reserved biddings and buy in at auctions and alter or rescind on terms or gratuitously any contract for a sale and generally may sell in such manner and on such terms and conditions whatsoever as they think fit and may convey the premises agreed to be sold accordingly.

Damages and charges in case of dispute to be settled by justices.

113. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by the justices before whom any offender is convicted.

Compensation how to be determined.

114. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts.

Compensation may be in land &c.

115. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works or money but in the case of land for the alienation of which the consent of any public department is required only with such consent.

Informations &c. by whom to be laid.

116. Save as herein is expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder or of any of the provisions of the Town Police Clauses Act 1847 and the Towns Improvement Clauses Act 1847 as respectively incorporated with the Public Health Act 1875 or of the Town Police Clauses Act 1889 may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by the chief constable or any superintendent of police acting for or within the borough.

Recovery of penalties &c.

117. Save as by this Act otherwise expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

118. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or withdrawal of any certificate licence or consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order by a court of summary jurisdiction under any provision of this Act may in cases where no other appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal.

A.D. 1904.
As to appeal.

119. All penalties recovered under this Act or under any byelaw thereunder (except penalties against the Corporation) shall be paid to the treasurer and be by him as to penalties in connection with municipal matters carried to the credit of the borough fund as to penalties in connection with sanitary matters carried to the credit of the district fund and as to penalties in connection with other matters carried to such fund as the Corporation may direct.

Penalties to
be paid over
to treasurer
&c.

120. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Saving for
indictments.

121. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or of any other Act or of any byelaw for the time being in force within the borough by reason of his being a member of the Corporation or liable to any rate provided he takes no part in the proceedings at which the resolution is passed directing the prosecution or other proceedings against a person offending against any provision of the said Acts or byelaws even though he may have been present at the meeting when such resolution as aforesaid was passed.

Judges not
disqualified.

122. Any summons or warrant issued for any purpose of this Act may contain in the body thereof or in a schedule thereto several sums.

Several sums
in one sum-
mons.

123. Whenever the Corporation or the surveyor under this or any other Act or any byelaw for the time being in force within the

In executing
works instead
of owner

A.D. 1904.

Corporation
only liable
for negli-
gence.

borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing And any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid may be recovered from such owner occupier or other person or may be added to and shall be deemed part of any private improvement expenses payable by such owner or occupier.

Inquiries
by Local
Government
Board.

124.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Crown rights.

125. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Saving rights
of Crown.

126. Nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall

[4 EDW. 7.] *Bridlington Corporation Act, 1904.* [Ch. ccxxii.]

anything herein contained extend to take away prejudice diminish A.D. 1904.
or alter any of the estates rights privileges powers or authorities
vested in or enjoyed or exercisable by the King's Majesty.

127. All the costs charges and expenses preliminary to and Costs of Act.
of and incidental to the preparing and obtaining this Act as taxed
by the taxing officer of the House of Lords or of the House of
Commons shall be paid by the Corporation out of the borough
fund and borough rate or out of moneys borrowed on the security
thereof under the authority of this Act.

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